Executive Order.

The Consular Regulations are hereby amended as follows:

Paragraph 491 is amended to read as follows:

491. *Two classes of officers.*—With respect to their compensation, consular officers are divided into two classes, (1) those who are paid from appropriations made annually by Congress, and (2) those who are paid no salary, but receive their compensation in fees collected for official services and in payments from the Treasury of the United States for services to American vessels and seamen.

Paragraph 492 is amended to read as follows:

492. *Salaried officers.*—Consuls general, consuls, vice consuls *de carrière*, consular assistants, interpreters, and student interpreters, receiving salaries fixed by law or executive order, are entitled to compensation at the rate of their respective salaries, as follows:

(1) Beginning not prior to the date of the oath of office, for time occupied in receiving instructions in the United States, or, by special direction of the Department of State, at consulates general or consulates other than those to which they shall have been appointed, not exceeding in all thirty days.—R. S. Sec. 1740.

(2) For the time actually and necessarily occupied in transit, by the most direct route, between the places of their residence and their posts, and vice versa. (Paragraph 477.) This applies to transit from the United States, to transit between posts when a transfer takes place, and to transit to the United States at the termination of service, unless the officer dies, or is recalled for malfeasance, or resigns in anticipation of such recall. The time during which a consul may be unavoidably detained at his post while waiting for a conveyance to the United States, or to another post, after delivering up the office, may be included in his transit period provided he takes the first available means of transportation. In the event that the appointee is not in the United States at the time of appointment no allowance of salary will be made except for the period actually and necessarily occupied in transit in reaching his post of duty, and the time which he may be especially directed by the Department of State to spend at a consulate general or consulate other than that to which he shall have been appointed receiving instructions in the performance of consular duties, not exceeding thirty days.

(3) From the date of entry upon official duty at their posts to the date when they cease to perform the duties of the office. This provision extends also to the time, after arrival at their posts, while awaiting the receipt of the exequatur or permission to act.—R. S. Sec. 1740.

Paragraph 493 is canceled.

Paragraph 494 is canceled.

Paragraph 495 is amended by striking out the last sentence.

Paragraph 499 is canceled.

Paragraph 502 is amended to read as follows:

502. *Salary during absence.*—It is provided by law that no consular officer shall receive salary for the time during which he may be absent from his post, by leave or otherwise, beyond the term of sixty days in the aggregate in any one calendar year, but that the time equal to that usually occupied in going to and from the United States, in case of the return on leave of such officer to the United States, may be allowed in addition to the sixty days. A salaried officer may accordingly receive the salary of his office for sixty days while absent from his post on leave, and also for the time of transit both to and from his residence, in case he visits the United States, as explained in paragraph 467. In case the officer does not visit the United States no salary will be allowed after the expiration of sixty days.—R. S. Sec. 1742; 12 Op. Att. Gen., 410.

Paragraph 505 is amended to read as follows:

505. *Resignation in the United States.*—The right to compensation of a consular officer who resigns while in the United States on leave of absence terminates with the date of the acceptance of the resignation, or the lapse of his statutory leave, whichever first occurs.

Paragraph 506 is amended to read as follows:

506. *Compensation of vice consuls.*—The salaries of vice consuls *de carrière* are set forth in paragraph 40, and are paid in the same manner as salaries of consuls general and consuls. For such time as they are lawfully authorized to assume charge of consulates general or consulates vice consuls not of career receive compensation at the rate of one half the salary provided by law for the principal officers in charge of their respective posts. They receive no other compensation unless they be also employed as clerks, in which case they receive compensation for their services as clerks. Both vice consuls *de carrière* and vice consuls not of career, for such time as they are lawfully authorized to assume charge of consulates general or consulates, whose salaries as subordinate consular officers or employees are less than one half the salaries of the respective principal officers in charge of such posts, are entitled to receive in addition to their regular salaries or compensation, compensation equal to the difference between such regular salaries or compensation and fifty per centum of the salaries provided by law for the principal officers at such posts.

Vice consuls are entitled to salary when traveling to and from their posts, or elsewhere, under the orders of the Secretary of State; and to salary while on leave of absence subject to the law governing leaves of absence. (Paragraph 467.)

Paragraph 509 is amended to read as follows:

509. *Compensation of student interpreters.*—Student interpreters receive compensation, upon appointment as such, at the rate of $1500 per annum. They are also provided with tuition and quarters free. After acquiring a knowledge of the language of the country and passing the first examination for promotion, usually at the end of the second year of service, they are promoted to be junior interpreters, or vice consuls *de carrière* of Class III, with a compensation of $2500 per annum. After passing the second examination for promotion, usually at the end of the third or fourth year, they are promoted to be senior interpreters, or vice consuls *de carrière* of Class I, with a compensation of $3000 per annum. They are thereafter eligible for promotion without further examination to the grade of consul of Class VI.

Paragraph 511 is amended to read as follows:

511. *Compensation of consular assistants.*—Consular assistants appointed by the President receive salaries according to the following schedule:

First year	$1500
Second year	$1650
Third year	$1800
Fourth year	$2000

They receive their salaries from the date they begin to discharge the duties to which they are assigned by the President, which date is usually simultaneous with that on which they take the oath of office.—R. S. Secs. 1704, 1705; 35 Stat. L. 180, Sec. 5; 40 Stat. L. 1334.

Paragraph 512 is amended to read as follows:

512. *Transportation and subsistence.*—Consular officers, consular assistants, and clerks in consulates, when going to or returning from their posts or traveling elsewhere, under orders of the Secretary of State, are entitled to their actual and necessary expenses for transportation, for subsistence (which shall not exceed five dollars for any one person in one day), for transportation and subsistence of their families (including only their wives and dependent children), and for the transportation of their effects, for which they must render accounts under such regulations as the Secretary of State may prescribe.

Paragraph 516 is amended to read as follows:

516. *Fees applicable to salaries.*—Consuls who are compensated by salaries appropriated annually by Congress are authorized to pay themselves from the fees they may collect if these shall be sufficient for the purpose. If not sufficient, a draft may be drawn at the end of each quarter for the deficiency, or for the whole quarter's salary, as the case may be. In all cases drafts for salary of consuls should be drawn upon the Secretary of State.

Drafts for salary and for all other accounts should be drawn only at the end of each quarter, and for amounts then due, and must be preceded or accompanied by the corresponding accounts and vouchers. In case of need, however, salary may be drawn before the end of the quarter, but not in a greater amount than is actually due when the draft is drawn. Only the difference between the amount of receipts from fees and the amount of salary accrued to the date of draft must in any case be drawn for.

Paragraph 517 is amended to read as follows:

517. *Fees applicable to salaries of subordinate officers.*—The officer in charge of a consular post is required to pay the salaries of all subordinate officers and employees from the fees received at the post. If these are not sufficient, a draft may be drawn by the officer in charge to complete the payment of the salaries of the officers and employees.

CALVIN COOLIDGE

THE WHITE HOUSE,
September 13, 1923.

[No 3902.]